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U.S. Department of State Diplomacy in Action

Papua New Guinea

Bureau of Democracy, Human Rights, and Labor

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Papua New Guinea has a federal parliamentary system based on universal adult suffrage. Voters elect a unicameral parliament with 109 members from all 19 provinces and the National Capital District. The most recent general elections were held in June 2002; there were localized instances of voter intimidation, violence, and influence peddling. A coalition government, led by Prime Minister Michael Somare, was formed following the election. The judiciary is independent, but was hampered by inefficiency.

The Government has constitutional authority over the Defense Force, the Royal Papua New Guinea Constabulary, and the National Intelligence Organization. The constabulary maintains internal security, assisted from time to time by the Defense Force, including during elections. The Defense Force is responsible for external security. While civilian authorities generally maintained effective control of the security forces, there were some instances in which elements of the security forces acted independently of government authority. Members of the constabulary committed a number of serious human rights abuses.

The economy is market based and relied heavily on agriculture and commodity exports. The population was approximately 5.5 million according to a 2001 United Nations Development Program (UNDP) estimate, and there are more than 800 distinct indigenous languages and tribes. Cyclical commodity prices, frequent changes of government complicating long-term economic planning, and lack of political will during a number of years to implement sound economic policies resulted in persistent macroeconomic stagnation. Crime, especially in urban areas, was a critical problem. Approximately 85 percent of the population resided in isolated rural villages and engaged in subsistence and smallholder agriculture. Real gross domestic product has shown negligible growth over the past 5 years. Per capita income has steadily declined in recent years and was estimated at \$740 in 2003. However, the economy improved during the year, due primarily to rising commodity prices and improved control over government spending, and wages and benefits generally kept pace with inflation. In October, a volcano erupted on Manam Island, destroying crops and causing villagers in the vicinity to flee their homes. During the year, the country received approximately \$260 million in development assistance from Australia, its largest trade partner and aid provider.

The Government generally respected the human rights of its citizens; however, there were serious problems in some areas. Police committed arbitrary or unlawful killings, used excessive force when arresting and interrogating suspects, and engaged in excessively punitive and violent raids. The Government on occasion investigated allegations of abuse and prosecuted those believed responsible. Prison conditions in several areas continued to be poor. Court understaffing reduced court hearings and increased pretrial detention periods. Police infringed on citizens' privacy rights. In the past, the Government limited freedom of assembly in the form of marches or demonstrations; there reportedly were no applications for permits for marches or demonstrations during the year. Extensive violence and discrimination against women were problems, and child abuse appeared to be a growing problem. Discrimination against persons with disabilities persisted, and violence among tribes in both urban and rural areas remained a serious problem.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

The police killed several persons during the year. According to police reports, most killings occurred during gunfights with criminal suspects who were resisting arrest. There were no reported deaths in custody during the year.

All police shootings are investigated by the police department's internal affairs office and reviewed by a coroner's court. If the court finds that the shooting was unjustifiable or due to negligence, the police officers involved are tried. Families of persons killed or injured by police may challenge the coroner's finding in the National Court, with the assistance of the Public Solicitor's Office. Cases of accidental shootings of bystanders by police during police operations are also investigated and reviewed by a coroner's court.

In the past few years, due to the availability of modern weapons, there have been an increasing number of deaths resulting from violent tribal conflicts (see Section 5).

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution forbids torture and other cruel or degrading treatment or punishment; however, individual members of the police frequently beat suspects during arrests, interrogations, and in pretrial detention. In March, Wewak police physically assaulted a group of village elders when the elders entered the police station to serve a court summons. In May, two police officers from Kundiawa were charged with raping a 17-year-old girl. In June, a 13-year-old rape victim from Manus Island alleged that the police officer investigating her case sexually assaulted her. In December, two police officers were charged with raping a female detainee in the Mendi station lockup in November. Although abuses such as citizens being permitted to beat suspects reportedly did not occur during the year, no action was taken against offenders from previous years.

In April, a small group of soldiers used Molotov cocktails to destroy several homes and businesses in a Port Moresby suburb in response to an ethnically charged altercation with local residents.

Prison conditions were poor. According to the Minister for Correctional Services, at year's end, there were more than 3,300 detainees, of whom approximately 90 percent were male. During most of the year, 15 of the country's 17 jails were operational. The prison system suffered from serious underfunding. During most of the year, prisons closed because of life-threatening conditions remained closed; in October, Bomana prison reopened after undergoing expansion and renovations funded by Australia. During the year, the jail in Hawi, which had closed in 2002 due to lack of funding, also reopened after renovation. Some prisons in urban areas were seriously overcrowded. In rural areas, infrequent court sessions and bail restrictions for certain crimes exacerbated overcrowding (see Section 1.d.).

Male and female inmates were housed separately. There were no separate facilities for juvenile offenders; however, in some prisons, juveniles were provided with separate sleeping quarters. Pretrial detainees were not separated from convicted prisoners.

Prisoners were often confined in crowded conditions in police stations. Prison guards' living conditions were as poor as those of the prisoners. Prison escapes were common, even from high security installations. In November, over 30 prisoners escaped from the police lockup in Buka.

The Government permitted prison visits by human rights observers.

d. Arbitrary Arrest, Detention, or Exile

The Constitution prohibits arbitrary arrest and detention, and the Government generally observed these prohibitions.

The country has a national police force, the Royal Papua New Guinea Constabulary, headed by a commissioner who reports to the Minister for Internal Security. A new commissioner was appointed in 2002 and replaced much of the police leadership in an effort to address corruption and inefficiency; however, corruption and impunity remained problems. During the year, some police officials were suspended for involvement in corruption or other criminal activity. Police effectiveness was impeded both by a serious lack of resources and by clan rivalries; within the constabulary, clan members often attempted to thwart remedial or disciplinary actions against fellow members of their clan. In September, the Minister for Internal Security published a highly critical report on the administration and operation of the police force. Among other problems, the report cited widespread police corruption and abuses, inadequate resources, poor discipline, and lack of accountability. The report also recommended a plan of action for reforming the institution. The report's publication coincided with the launch of the Australian-sponsored Enhanced Cooperation Program, under which over 200 Australian Federal Police officers were sent to work alongside the constabulary to improve police practices.

Under the law, to make an arrest, police must have reason to believe that a crime was committed, is in the course of being committed, or will be committed. A warrant is not required, and police made the majority of arrests without one. Citizens may make arrests under the same standards as the police, although this was rare in practice. Police, prosecutors, or citizens may apply to a court for a warrant; however, police normally did so only if they believed it would assist them in carrying out an arrest. During the year, there were reported instances of politicians directing or bribing police officials to arrest or intimidate individuals seen as political enemies or as possible whistle-blowers on corruption or misuse or theft of public assets.

Under the law, only National or Supreme Court judges may grant bail to persons charged with willful murder or aggravated robbery. In all other cases, the police or magistrates may grant bail. Arrested suspects have the right to legal counsel, to be informed of the charges against them, and to have their arrests subjected to judicial review. Access to counsel by detainees was not a problem during the year. Due to very limited police and judicial resources

and a high crime rate, suspects often were held in pretrial detention for long periods of time. Pretrial detention is subject to strict judicial review through continuing pretrial consultations; however, the slow pace of police investigations and occasional political interference or police corruption frequently delayed cases for months. Additionally, circuit court sittings were infrequent because of a shortage of judges and travel funds, delaying both the trial process and the rendering of decisions. Some detainees have been held in jail for more than 2 years because of the shortage of judges.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary, and the Government generally respected this provision in practice. The Supreme Court is the final court of appeal and has original jurisdiction on constitutional matters. The National Court hears most cases and appeals from the lower district courts established at the provincial level. There also are village courts headed by lay persons (generally local chiefs, known as "big-men"), who judge minor offenses under both customary and statutory law.

The legal system is based on English common law. The Constitution provides for due process, including a public trial, and the court system generally enforced these provisions. Defendants have the right to an attorney. The Public Solicitor's office provides legal counsel for those accused of "serious offenses" who are unable to afford counsel. Serious offenses are defined as charges for which a sentence of 2 years or more is the norm. Defendants and their attorneys may confront witnesses, present evidence, plead cases, and appeal convictions. The shortage of judges created delays both in the process of trials and in the rendering of decisions (see Section 1.d.). During the year, development aid was provided for some training and education of the judiciary.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution prohibits such action; however, there were instances of abuse. Police raids and searches of the homes or settlements of suspected criminals or other wrongdoers often were marked by a high level of violence and property destruction. Police units operating in highland regions sometimes used intimidation and destruction of property to suppress tribal fighting (see Section 5).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press, and the Government generally respected these rights in practice and did not restrict academic freedom. The combined circulation of the two daily English-language newspapers was less than 60,000. A weekly newspaper in Melanesian Pidgin (the national "lingua franca") also was published. All newspapers expressed independent coverage, included a variety of editorial viewpoints, and reported on controversial issues such as alleged abuses by police, cases of alleged corruption by government officials, and political opposition views. There was no evidence of officially sanctioned government censorship; however, newspaper editors complained of intimidation tactics aimed at influencing coverage. In November, immigration officials at the international airport seized the passport of an Australian journalist conducting research on police brutality and illegal logging operations and prevented her from leaving the country. The passport was returned after 2 days. Also in November, police allegedly seized the camera of a photographer for The National newspaper when he tried to photograph an altercation between police and a shop owner in Port Moresby.

The sole domestic television broadcaster, EMTV, was purchased by a private Fijian company in December; reception was limited to the capital and provincial centers. The two local cable companies were independent. The government-owned National Broadcasting Corporation operated two radio networks whose effectiveness was limited by inadequate funding and deteriorating equipment. Based in Port Moresby, a privately owned radio network, NAU-FM, was expanding to other areas of the country. There were a small number of local radio stations in cities other than Port Moresby.

Internet access was privately operated and becoming common in cities; the Government did not restrict it.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly; however, the Government often has limited this right in practice. Public demonstrations require police approval and 14 days' notice. Police, asserting a fear of violence from unruly spectators, rarely gave approval. Police reportedly received no requests for such approval during the year.

The Constitution provides for freedom of association, and the Government generally respected this right in practice. Associations wishing to open a bank account and conduct financial transactions must register with the government. The process of registration was slowed by bureaucratic inefficiency, but there was no policy of denying registration. International affiliation of church and civic groups was permitted freely.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respected this right in practice. The Department of Education set aside 1 hour per week for religious instruction in the public schools. Religious representatives taught the lessons, and parents chose the class their children would attend. Children whose parents did not wish them to attend the classes were excused.

For a more detailed discussion, see the [2004 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2004/\)](https://2009-2017.state.gov/j/drl/rls/irf/2004/).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights, and the Government generally respected them in practice. The Constitution prohibits forced exile, and the Government did not use it.

Although a party to the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol, the Government has not enacted enabling legislation and has not established a system for providing protection to refugees. In practice, the Government provided temporary protection to individuals who may not qualify as refugees under the 1951 Convention or 1967 Protocol.

During the year, the Government provided protection for several hundred persons who fled the Indonesian province of Papua (formerly Irian Jaya). Several hundred more lived in informal, unrecognized camps adjacent to the border with Indonesia. A reservation to the 1951 Convention regarding the issuance of travel documents restricted the travel of some persons from the Indonesian province of Papua living in a refugee camp in the western part of the country. However, during the year, approximately 120 persons from Indonesian Papua were moved from a refugee

camp at Vanimo to a new settlement in the isolated East Awin region of Western Province. The U.N. High Commissioner for Refugees organized the resettlement, with cooperation from the Government. There were no known forced returns of Papuans to Indonesia.

During the year, the sole detainee at the detention camp on Manus Island was released and left the country for Australia. The camp, administered by the International Organization for Migration with Australian funding, had held asylum seekers interdicted at sea by Australia.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their government peacefully, and citizens exercised this right in practice through periodic, free, and fair elections held on the basis of universal suffrage. Voters elect a unicameral parliament with 109 members from all 19 provinces and the National Capital District. Any citizen may stand for election. Because of the large number of candidates, some Members of Parliament (M.P.s) have won election with less than 10 percent of the total votes cast.

The most recent general election was held in June 2002. Of the 109 seats in Parliament, 77 changed hands. Prime Minister Michael Somare formed a coalition government following the election. Fraud, voter intimidation, theft of ballot boxes, and violence, including rape and murder, marred the election in some parts of the country, and the polls were declared failed in six electoral districts in the Southern Highlands. New elections in those districts, financed by Australia and accompanied by very little violence, were held successfully in April 2003.

The law provides that a losing candidate may dispute an election result by filing a petition with the National Court. Such petitions may question actions of the winning candidate and his supporters or allege malfeasance by the election officials. The procedure is fair, but time consuming and expensive both to initiate and to defend. Following the 2002 election, 83 such petitions were filed against winning candidates. A number of the petitions were successful, and new elections were held in those cases.

In August 2001, the Government signed a peace agreement with Bougainville rebels, and progress toward the establishment of an autonomous Bougainville government has been made. The Bougainville autonomous interim authority was established as a governing body pending approval of a new constitution and the holding of elections. In December, a new provisional constitution was approved, and elections are scheduled for 2005. The U.N. Observer Mission in Bougainville, scheduled to close at year's end, was extended for 6 months.

The weapons-surrender program mandated in the 2001 Bougainville peace agreement and carried out under U.N. supervision was declared successful and formally concluded in 2003, but the collection of weapons continued during the year.

Corruption at all levels of government was widely perceived to be a serious problem, primarily because clan-related obligations continued to undermine allegiance to constituents or to the country as a whole. According to press reports, in February, the National Capital District city manager fired the chief auditor for the National Capital District Commission (NCDC) after the auditor conducted an investigation that uncovered bribery and other misappropriation of NCDC funds by NCDC staff and others. At year's end, the auditor had not been reinstated.

In November, an M.P. and former minister of public works was convicted of failing to account for approximately \$535,000 (1.7 million kina) in public funds during his 1992-1997 tenure as minister; he was acquitted on 31 other misconduct charges on grounds of insufficient evidence. In December, he was removed from office.

During the year, there were media reports of alleged illegal payments by private companies to the Attorney General for settling, out of court, financial claims by the companies against the Government. In September, the Attorney General was charged with two counts of improperly authorizing out-of-court settlements and was suspended from office; he allegedly assaulted a government official who attempted to serve him with documents concerning the suspension. He denied the charges and stated his intention to file defamation suits against those involved in making the charges against him. Later the same month, he was reinstated in office after winning a temporary injunction from the National Court. As of year's end, he remained in office, but his government employment contract, due to expire in early January 2005, had not been renewed.

No law provides for public access to government information. The Government published frequent public notices in national newspapers and occasional reports on specific issues facing the Government; however, it generally was not responsive to individual requests, including media requests, for access to government information.

One woman was elected to the 109-seat Parliament in the 2002 elections, compared with 2 in the previous Parliament. She was named the Minister for Welfare and Social Development, the only Cabinet position held by a woman. There were no female Supreme Court justices or provincial governors.

There were five members of minorities (non-Melanesians) in the Parliament. Of these five M.P.s, two were in the Cabinet and two were provincial governors.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

There were no official barriers to the formation of human rights groups. The Government cooperated with human rights nongovernmental organizations (NGOs), both domestic and international, but at times was slow in responding to their requests for information. The International and Community Rights Advocacy Forum, an umbrella group, concentrated on human rights and the environment during the year.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The Constitution provides for equal protection under the law irrespective of race, tribe, place of origin, political opinion, color, creed, religion, or sex. Despite these constitutional and other legal provisions, women often faced discrimination. Geographic diversity prevents any one tribe or clan from dominating the country. Successive governments, based on loose coalitions, have consistently avoided favoring any group. Skirmishes and conflicts tended to be based on disputes between clans over issues such as boundaries, land ownership, and injuries and insults suffered by one clan at the hands of another; they were not ethnically based.

Women

Violence against women, including domestic violence and gang rape, was a serious and prevalent problem. Domestic violence was common and is a crime. However, since most communities viewed domestic violence as a private matter, few victims pressed charges and prosecutions were rare. Traditional village mores, which served as deterrents, were weakening and were largely absent when youths moved from their village to a larger town or to the capital. Although rape is punishable by imprisonment and sentences were imposed on convicted assailants, few rapists were apprehended. The willingness of some communities to settle incidents of rape through material

compensation rather than criminal prosecution made the crime difficult to combat. In December, the Madang provincial governor was charged with raping a 17-year-old high school student during the National Governors' Conference in September. The case had not gone to trial by year's end.

Violence committed against women by other women frequently stemmed from domestic disputes. In areas where polygyny was still customary, an increasing number of women were charged with the murder of another of their husband's wives. According to one report, 65 percent of women in prison were there for attacking or killing another woman.

In August, the head of the National Council of Women called for stronger criminal penalties for perpetrators of violent acts against women.

The Constitution and laws have provisions for extensive rights for women dealing with family, marriage, and property issues. Some women have achieved senior positions in business, the professions, and the civil service. However, traditional discrimination against women persisted. Many women, even in urban areas, were considered second-class citizens. Village courts tended to impose jail terms on women found guilty of adultery, while penalizing men lightly or not at all. Circuit riding National Court justices frequently annulled such village court sentences. By law, a district court must endorse orders for imprisonment before the sentence is imposed. Polygyny and the custom in many of the country's tribal cultures of paying a bride price tended to reinforce the view that women were property. In addition to the purchase of women as brides, women also sometimes were given as compensation to settle disputes between clans. The courts have ruled that such settlements denied the women their constitutional rights.

According to statistics published in the UNDP's 1999 country report on human development, women were gaining rapidly in literacy and education. Adult literacy rose to 73 percent; 65 percent of women were literate, compared with 86 percent of men. However, there were approximately 15 percent fewer girls in primary schools than boys. According to Ministry of Health statistics, the maternal mortality rate was 370 deaths per every 100,000 live births during the period 1985-1997.

Prostitution is illegal; however, the laws were not enforced and the practice was widespread. There were no reports of sex tourism during the year. Sexual harassment is not illegal, and it was a widespread problem. There is an Office of Women's Affairs in the Office of Church and Family Services of the Ministry of Provincial Affairs; however, due to funding constraints, it was not active during the year, and it had little effect on the Government's policy toward women.

Children

Independent observers generally agreed that the Government did not dedicate significant resources to protecting the rights and welfare of children. Religious and secular NGOs operated programs to protect and develop youth and children. In the past, children were well cared for within the family and under traditional clan and village controls; however, preliminary, small-scale studies indicated that this situation has changed over the last decade, especially in areas where households have become isolated from the extended family support system and depend on the cash economy for a livelihood.

According to a report prepared by the Government and UNICEF, sexual abuse of children was believed to be frequent. There were some cases of commercial sexual exploitation of children in urban areas. Many villages were geographically isolated, and malnutrition and infant mortality rates were very high. Nearly 70 of every 1,000 children born did not survive their first year. Primary education was not free, compulsory, or universal; substantial fees were

charged. In 1999, the Asian Development Bank reported a primary school enrollment rate of 91 percent for boys and 78 percent for girls; many children did not progress further. Government-provided free medical care for citizens, including children, was no longer available due to budget cuts and deteriorating infrastructure, particularly in rural areas. Many children did not have effective medical care.

Trafficking in Persons

Although the Constitution does not prohibit trafficking in persons, there was no evidence that persons were trafficked to, from, or within the country. However, over the last 5 years, the Government investigated allegations of corruption among officials dealing with passport issuance and immigration. These allegations centered on the organized circumvention of immigration controls; often this involved the issuance outside of regulations of residence and work permits for Chinese or South Asian nationals migrating to the country. Nevertheless, there was concern that the country may be used as a route for trafficking in persons to Australia.

Persons with Disabilities

Through the National Board for the Disabled, the Government provided funds to a number of NGOs that provided services to persons with disabilities. The Government did not provide programs or services directly. Apart from the traditional clan and family system, services and health care for persons with disabilities did not exist in several provinces. There was no legislation mandating accessibility to buildings. Persons with disabilities faced discrimination in education, training, and employment. Most persons with disabilities did not find training or work outside the family structure. The Government provided free consultation and treatment for persons with mental disabilities; however, such services were rarely available outside major cities.

National/Racial/Ethnic Minorities

Centuries-old animosities among isolated tribes, a persistent cultural tradition of revenge for perceived wrongs, and the lack of police enforcement sometimes resulted in violent tribal conflict in the highland areas. In the last few years, the number of deaths resulting from such conflicts has risen due to the availability of modern weapons.

Other Societal Abuses and Discrimination

The AIDS/HIV Management and Protection Act, which came into effect during the year, makes it illegal to impede the access of any person to goods or services for protection against HIV infection, including relevant medical care and information; prohibits the termination of employees because of AIDS/HIV status; gives the Ombudsman and the courts authority to deal with unlawful discrimination against persons with AIDS/HIV; and provides for criminal penalties for intentional transmission of the HIV virus. There were no reports of government discrimination against persons with AIDS/HIV; however, there was a strong societal stigma attached to AIDS/HIV infection, and there were reports that companies have separated HIV positive employees after learning of their condition. In July, a woman from Ketarobo village reportedly was beaten and burned by fellow villagers because she had AIDS, and died after being taken to a hospital in a nearby town.

Section 6 Worker Rights

a. The Right of Association

The law provides for the right to form and join labor unions, subject to registration by the Department of Industrial Relations. The Government did not use registration to control unions; however, an unregistered union has no legal standing with the Department of Labor and Employment or before the courts and thus cannot operate effectively. About half of the 250,000 wage earners in the formal economy were organized and were members of approximately 50 trade unions. Most of the unions representing private-sector workers were associated with the Trade Unions Congress. The Public Employees Association represented an estimated 23,000 persons employed by national, provincial, and municipal governments, or one-third of the public sector work force. The law prohibits anti-union discrimination by employers against union leaders, members, and organizers; however, it was enforced selectively. Unions were independent of the Government and of political parties.

b. The Right to Organize and Bargain Collectively

The Constitution provides for the right to engage in collective bargaining and to join industrial organizations, and workers exercised these rights in practice. Under the law, the Government has discretionary power to cancel arbitration awards or declare wage agreements void when they are contrary to government policy. The International Labor Organization criticized this law. The Department of Industrial Relations and the courts are involved in dispute settlement. Wages above the minimum wage are set through negotiations between employers and employees or their respective industrial organizations.

The Constitution provides for the right to strike, and there were no government efforts to hinder either public- or private-sector unions from exercising this right. The law prohibits retaliation against strikers; however, it was not always enforced. Employees of some government-owned enterprises went on strike on several occasions during the year, primarily to protest against privatization policies. These strikes were brief and ineffective.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution forbids slavery and all forms of forced or compulsory labor, including that performed by children, and there were no reports that such practices occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

The Employment Act establishes the minimum working age as 18. However, children between the ages of 11 and 18 may be employed in a family-related business or enterprise provided they have parental permission, a medical clearance, and a work permit from a labor office. This type of employment was rare, except in subsistence agriculture.

e. Acceptable Conditions of Work

The Minimum Wage Board, a quasi-governmental body with labor and employer representatives, sets minimum wages for the private sector. The national youth wage, for new entrants into the labor force between 16 and 21 years of age, was set at 75 percent of the adult minimum wage. Although it is above the national per capita income, the adult minimum wage of \$6.55 (22.96 kina) per week, unchanged since 1992, did not provide a decent standard of living for a worker and family who lived solely on the cash economy. During the year, as has been the case annually for nearly a decade, the Minimum Wage Board recommended a large increase in the minimum wage; however, the Government disagreed, and no increase was implemented.

The law regulates minimum wage levels, allowances, rest periods, holiday leave, and overtime. Although the Department of Labor and Employment and the courts attempted to enforce the minimum wage law, enforcement was not effective. The law limits the workweek to 42 hours per week in urban areas and 44 hours per week in rural areas. The law provides for at least one rest period of 24 consecutive hours every week; however, enforcement was lax. Enforcement of the Industrial Health and Safety Law and related regulations is the responsibility of the Department of Labor and Employment. The law requires that work sites be inspected on a regular basis; however, due to a shortage of inspectors, inspections took place only when requested by workers or unions. Workers' ability to remove themselves from hazardous working conditions varied by workplace. Unionized workers had some measure of protection in such situations.

The law protects legal foreign workers. The few illegal foreign workers lacked full legal protection.

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